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Religious Freedom, the Minority Question, and Geopolitics in the Middle East

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The right to religious freedom is widely regarded as a crowning achievement of secular-liberal democracies, one that guarantees the peaceful coexistence of religiously diverse populations. Enshrined in national constitutions and international laws and treaties, the right to religious liberty promises to ensure two stable goods: (1) the ability to choose one's religion freely without coercion by the state, church, or other institutions; and (2) the creation of a polity in which one's economic, civil, legal, or political status is unaffected by one's religious beliefs. While all members of a polity are supposed to be protected by this right, modern wisdom has it that religious minorities are its greatest beneficiaries and their ability to practice their traditions without fear of discrimination is a critical marker of a tolerant and civilized polity. The right to religious freedom marks an important distinction between liberal secularism and the kind practiced in authoritarian states (such as China, Syria, or the former Soviet Union): while the latter abide by the separation of religion and state (a central principle of political secularism), they also regularly abrogate religious freedoms of their minority and majority populations. Despite claims to religious neutrality, liberal secular states frequently regulate religious affairs but they do so in accord with a strong concern for protecting the individual's right to practice his or her religion freely, without coercion or state intervention.

While linked to the civic virtue of tolerance in secular liberal societies, the right to religious liberty is also distinct in that it is enshrined in law, codified in national constitutions and international treaties and charters. There are few

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constitutions in the world that do not cite it as a founding doctrine of the nation-state, and it appears as one of the foundational articles in the Universal Declaration of Human Rights. As such, the right to religious liberty is ineluctably tied with questions of state sovereignty and by extension international law (as a means of regulating relations between members of the “society of nations”). While it is common to conceive of religious liberty as an individual human right, a far less recognized aspect of religious liberty is its longstanding use as a technology of modern governance and its role in the maintenance of a geopolitical and international legal order in which Western and non-Western sovereignties are unequally weighted. My essay is an exploration of this neglected dimension of the right to religious liberty, focusing on how the establishment of the principle of religious liberty as well as its ongoing exercise in non-Western countries continues to be shaped by this inequality. As we ponder the problem of religious sectarianism in the modern period, one might want to ask not so much *what* inhibits the realization of religious freedom (as if religious freedom were an ahistorical and universally valid good) but *how* the national and international regulation and protection of religious minorities makes specific notions of freedom and unfreedom possible and imaginable.

Focusing on the Middle East, in what follows I analyze how the discourse on religious freedom from its inception has been intertwined with the exercise of Western power first in its Christian and later secular modalities, shaping its formulation in contemporary national and international law. Key in this alternative genealogy of the right to religious liberty is the figure of the “minority” in Middle Eastern history that has served as a site for the articulation and exercise of European power. As I will show, from the seventeenth century onward the discourse on religious liberty in the Middle East has been intertwined with European projects of extending “protections” to non-Muslim minorities (primarily Christian) as a means of securing European interests in the region. As I will argue, such a historical project cannot simply be understood as an instrumentalization of religious minorities for geopolitical ends. Instead, one must ask as to how the very concept of “religious minority”—its space of problematization—is indebted to this history. Viewed from this perspective, “religious minorities” do not just signify a demographic entity that are accorded a space of freedom and immunity by the institutionalization of religious liberty, but are also produced through the process of the legal codification of this principle. One of the key questions that guides this essay is that of how the discourse on religious liberty has participated in the production of “the minority problem” in international law, and how this “problem” has unfolded in the history of the modern Middle East.

The essay is divided into two parts: the first traces in broad strokes the conditions of emergence of the concept of religious liberty in the Middle East in which Western Christian powers played a crucial role. My intention in this section of the paper is not so much to give a chronological account as

to offer a critical reading of key historical developments that have been well documented by historians of the Middle East. In offering this reading, I want to not simply claim that Euro-American interventions on behalf of religious liberty have legitimized imperial and colonial projects but to analyze how this history transforms our theoretical understanding of the concept of religious liberty and the collective goods it is supposed to facilitate. In the second half of the paper, I focus on the case of Coptic Christians in Egypt as a test case that elaborates these earlier trends while also departing from this history—a departure born of the specific struggles this community has had to wage in order to find a place in the Muslim-dominated project of Egyptian nationalism. Inasmuch as my reading of this struggle draws upon the work of historians of Coptic Christianity and my own fieldwork in Egypt, it aims to parse out the discursive construction of the terms “minority” and “religious liberty.” The Coptic case is instructive for the structural paradoxes it reveals that are internal to the conceptual architecture of the modern discourse on minority rights and religious liberty. As I will show, the career of religious liberty in the Middle East and in Egypt cannot be dismissed as a minor footnote in the global unfolding of this universal principle. Rather, my point is that no account of religious liberty in colonial and postcolonial societies is adequate without analyzing the constitutive effects that the inequality of geopolitical power has on its concept and practice.

PART I

Unequal Sovereignties and Religious Freedom

In European historiography, the signing of the Peace of Westphalia in 1648 is often narrated as a foundational moment in the emergence of the twin concepts of religious liberty and state sovereignty that not only brought an end to almost a hundred years of religious warfare among Christians but also paved the way for the eventual creation of a political order in which religious tolerance became an integral part of modern governance and statecraft. While some scholars view the Peace of Westphalia as an earlier moment in Europe’s unfolding commitment to the virtue of tolerance, others see it as a far more pragmatic instrument that helped settle longstanding territorial disputes, granting formal independence to polities struggling to be free from the Holy Roman Empire (such as the Netherlands, Switzerland, Savoy, and Milan). In this latter understanding the Peace of Westphalia is credited with establishing the principle (if not the practice) of state sovereignty with the sovereign’s right to control his territory and subjects free from outside intervention.¹ What I want to highlight

¹ Strictly speaking, neither the principle of nonintervention in sovereign states nor the idea of individual religious liberty, as we know them today, were institutionalized at the time of the Peace of Westphalia. What the treaty ensured was the right of the prince to determine the religion

here is that in European historiography, the symbolic birth of the concept of religious liberty is deeply intertwined with the establishment of the principle of state sovereignty, territorial exchange between warring parties, and the creation of an inter-state protocol for handling what used to be called “religious dissidents” but later came to be regarded as “religious minorities.”

While the fundamental relationship between religious liberty and the doctrine of modern sovereignty in European history is widely acknowledged, far less appreciated are the exceptions this narrative enacted as the discourse of religious liberty traveled to non-European shores. Notably, the introduction of the principle and practice of religious freedom to non-Western lands was often predicated upon the violation and subjugation of the principle of state sovereignty instead of its consolidation (as enshrined in the Treaties of Westphalia). Consider, for example, the repeated attempts by Christian European rulers to assert their right to protect Christian minorities within the Ottoman Empire throughout the sixteenth century. As the historian Malcolm Evans observes, when the Ottoman Empire was strong it was able to accommodate these pressures without compromising its sovereignty, but once Ottoman power started to decline it was unable to resist Western European incursions on behalf of the Ottoman Christian population.² As early as the sixteenth century, Ottoman rulers had granted special privileges—known as “capitulations”—to Western European traders that ensured a considerable degree of self-government in matters of criminal and civil jurisdiction as well as freedom of religion and worship. Historians note that these privileges soon came to apply not only to Western traders residing in Ottoman territories but also to European missionaries and eventually indigenous Ottoman Christian communities (what were then called “Eastern Christians”)—this amounted to the de facto revocation of Ottoman common law in relation to Ottoman subjects.³

Notably, no parallel privileges existed for non-Christians residing in territories ruled by Christian empires at this time. According to Evans, “These privileges were originally bestowed at a time when the Western States were

of his state (limited at the time to Lutheranism, Catholicism and Calvinism), a notion substantially expanded by John Locke almost forty years later that is closer in meaning to how it is used today. The term “Westphalian sovereignty” is somewhat of a misnomer in this sense but persists nonetheless. On this point see Stephen Krasner, *Sovereignty: Organized Hypocrisy* (Princeton: Princeton University Press, 1999), 20.

² Malcolm Evans, *Religious Liberty and International Law in Europe* (Cambridge: Cambridge University Press, 1997), see especially ch. 2.

³ For example, under the capitulations granted to the French in 1604, all the monks who served in the Holy Places came under the protection of France. Eventually, “Traders, missionaries, Western citizens living in the empire, and soon Eastern Christians too, all found themselves placed under the protection of French kings,” and over time France came to stand in as the protector of Christians of the Ottoman Empire. Joseph Maila, “The Arab Christians: From the Eastern Question to the Recent Political Situation of the Minorities,” in Andrea Pacini, ed., *Christian Communities in the Arab Middle East: The Challenge of the Future* (Oxford: Clarendon Press, 1998), 35.

economically and politically inferior to Ottomans but, as the balance of power shifted in their favour, they became a potent means of furthering their strength and the enfeebled Empire was unable to resist. Within this framework, the role of Western European States as protectors of the religious freedom of their subjects within the Ottoman domains easily elided into a claim entitling them to champion the liberties, religious and otherwise, of all Christians in the Empire.”⁴

The treaties of Paris (1856) and Berlin (1878), both signed when Ottoman power was in decline, also contained provisions for religious liberty that the Ottomans and the newly independent republics were made to adopt under European pressure. For example, the Treaty of Berlin, following the Russo-Turkish War, made the extension of religious liberty to minority subjects a condition for extending recognition to Romania, Bulgaria, Montenegro, and Serbia all of which were breakaway states from the Ottoman Empire. In the wake of these treaties, as the Ottomans undertook broad reforms (known as *Tanzimat*) they passed the sweeping decree of *Hatt-i Hümayun* in 1856 that ostensibly guaranteed freedom of religion to all its subjects, dismantling distinctions based on religion, language, and race, and forms of legal hierarchy between Muslims and non-Muslims.⁵ While this was the letter of the decree, historians point out that in practice formal and informal discriminations against non-Muslims continued unchecked. Bruce Masters argues, however, that “it would be wrong to think that ... [the decree] simply represented political expediency on the part of the framers [to accommodate European pressure]. Many in the generation of the *Tanzimat* reformers genuinely wanted to transform the political landscape of the empire in order to create Ottoman citizens who could hold the line against the empire’s dissolution.”⁶ The empire had already lost large parts of its territory (one-third by 1878), and the Ottoman reformers were eager to “bring Christians who had become protégés of foreign states [under the system of capitulations] back under the jurisdiction of the Ottoman state and its legal system.”⁷

While I will return to the issue of the relationship between religious liberty and nationalism later, here I want to emphasize the extent to which the discourse on religious liberty in Ottoman territories at the end of the nineteenth century was linked to geopolitics and questions of sovereignty and territorial

⁴ Evans, *Religious Liberty*, 61–62.

⁵ Bruce Masters lists some of the key elements of *Hatt-i Hümayun*: the guarantee of freedom of religion; abolition of distinction based upon language, race, or religion; the replacement of shari’a courts with mixed courts for commercial and criminal suits involving Muslims and non-Muslims; and the dropping of the terms *ahl al-dhimma* or *reaya* in favor of *gayrimüslimler* (other than Muslims). See Masters, *Christians and Jews in the Ottoman Arab World: The Roots of Sectarianism* (Cambridge: Cambridge University Press, 2001), 138.

⁶ *Ibid.*, 137.

⁷ Donald Quartet, *The Ottoman Empire, 1700–1922* (Cambridge: Cambridge University Press, 2000), 65.

control. These issues were at play not only in the policies of the European powers but also in the Tanzimat reforms the Ottomans enacted (of which Hatt-i Hümayun was an important part). Religious liberty was, however, far from a stable signifier and meant different things to different actors, which were often shaped by inter- and intra-state dynamics. For the missionaries and their European partisans, religious liberty meant the freedom to proselytize in the Ottoman territories and an important means for securing religious conversion. The Ottomans, on the other hand, interpreted religious liberty “as ‘the freedom to defend their religion’” against ascendant missionary activity and to consolidate the Islamic character of the empire.⁸ For many (though by no means all) Ottoman Christian communities that continued to face discrimination, religious liberty became one of the primary idioms through which to claim Western protection against systemic discrimination and at times outright violence (as was the case with Armenian Christians). For all stakeholders, though, the struggle over the meaning and implementation of religious liberty could not but engage questions of geopolitical struggle and sovereignty, regardless of where they stood on the issue.

Religious Freedom and the “Minority Problem”

The Versailles Peace Conference in the year 1919 is often narrated as a transformative moment in world history that heralded not just the end of World War I but also the creation of a new international order based on the nation-state with the decisive dissolution of the system of empires—Ottoman, Habsburg, and Hohenzollern—that had lost the war. While the institutional form of the nation-state was already prevalent in countries of Western Europe and North America, the victorious powers now extended it to the breakaway states created from the fallen empires. This was a momentous development in Central and Eastern Europe particularly, where more than sixty million people were granted a state of their own. Notably, despite the novel character of this new international order predicated on a system of nation-states, the Versailles peace treaties repeated the old pattern of European powers stipulating minority rights over states they militarily defeated: the Allied Powers made their recognition of the newly independent states conditional upon the pledge to uphold the rights of religious and ethnic minorities within their boundaries.⁹ As was the case with earlier treaties, none of the victorious Western European powers (Britain, the United States, Italy, France, Belgium, and Denmark) accepted such provisions regarding the protection of minorities within their own borders (Welsh and Irish in Britain, Native Americans and blacks in the United States, Bretons and Basques in France, and the multinational Tyrol in

⁸ Selim Deringil, *The Well Protected Domains: Ideology and the Legitimation of Power in the Ottoman Empire 1876–1909* (New York: I. B. Taurus, 1998), 115.

⁹ Among others, this was required of Poland, Czechoslovakia, Romania, and Greece.

Italy). That Germany was not subject to these conditions, despite having lost the war, is testament to the misplaced trust in the ability of Western European societies to naturally achieve tolerance.¹⁰ The irony that Germany, with its unprecedented pogrom against Europe's most visible minorities, prompted World War II was not lost on the states that had been forced to accept minority stipulations in 1919.

The establishment of the nation-state as the dominant political form put into play a new rationale of governance that divided up the governed differently from the logic of empires: instead of recognizing parallel and contiguous communities distinct by virtue of their confessional, denominational, or tribal/ethnic affiliation, the nation-state sought to represent "the people," united by a shared history, culture, and territory, wherein each individual qua citizen was tied to the state through a legal system of rights and obligations. The terms "majority" and "minority" came to serve as a constitutional device for resolving differences that the ideology of nationalism sought to eradicate, eliminate, or assimilate. Since the Versailles Peace Conference, the concept of "national minority" has been used in international law to distinguish communities that can lay claim to membership in a national polity versus those populations—such as migrant workers or refugees—who can make no such claims.¹¹ Since 1919, minority has come to connote "an internationally sanctioned and politically consolidated category whose primary reference [is] to the nation state in which the minority [holds] citizenship, rather than the [group] to whom he/she 'racially' [or denominationally] belonged."¹²

The concept of "national minority" is built, however, on a fundamental tension: on one hand, it signifies the membership of a minority group in a national polity; on the other, the minority group by virtue of its cultural, racial, religious, ethnic, or linguistic difference from the majoritarian culture also represents an incipient threat to national unity. This threat is internal to the ideology of nationalism in that the modern concept of nationhood regards linguistic, ethnic, and cultural characteristics as a legitimate basis for people's claim to national self-determination and independent statehood.¹³ The aim of the Minority Treaties that were instituted during the interwar years, under the auspices of the League of Nations and the International Court of Justice, was precisely to regulate this dual character of "national

¹⁰ Jennifer Jackson Preece, "Minority Rights in Europe: From Westphalia to Helsinki," *Review of International Studies* 23 (1997): 75–92.

¹¹ See Jennifer Jackson Preece, *National Minorities and the European Nation-States System* (New York: Oxford University Press, 1999), 14–30.

¹² Jane Cowan, "Selective Scrutiny: Supranational Engagement with Minority Protection and Rights in Europe," in Franz von Benda-Beckmann, Keebet von Benda-Beckmann, and Anne Griffiths, eds., *The Power of Law in a Transnational World: Anthropological Enquiries* (New York: Berghahn Press, 2009), 91.

¹³ Preece, "Minority Rights," 82.

minorities”: they were to monitor minority rights infractions committed by the newly created nation-states, and also to regulate the threat irredentist movements posed to the status quo of the system of nation-states created by the Allied Powers. One begins to get a sense of the magnitude of the problem that the Minority Treaties sought to manage if we consider that more than twenty million people came to acquire the status of a “national minority” in Central and Eastern Europe alone.

Hannah Arendt was among the first to incisively diagnose the irreversible transformation wrought in the meaning of the term “minority” as the nation-state became the dominant political form globally:

Minorities had existed before, but the minority as a permanent institution, the recognition that millions of people lived outside normal legal protection and needed an additional guarantee of their elementary rights from an outside body [the League of Nations], and the assumption that this state of affairs was not temporary but that Treaties were needed in order to establish a lasting *modus vivendi*—all this was something new, certainly on such a scale in European history. The Minority Treaties said in plain language what until then had been only implied in the working system of nation-states, namely, that only nationals could be citizens, only people of the same national origin could enjoy the full protection of legal institutions, that persons of different nationality needed some law of exception until or unless they were completely assimilated and divorced from their origin.... They thereby admitted ... that the transformation of the state from an instrument of the law into an instrument of the nation had been completed; the nation had conquered the state, national interest had priority over law long before Hitler could pronounce “right is what is good for the German people.”¹⁴

The transformation in the meaning of the terms “nation” and “minority” was consequential for the inhabitants of the Ottoman Empire. The Ottoman terms “*taifa*” or “*millet*” (literally “nation”) were traditionally used to refer to the confessional group to which one belonged, headed by a patriarch, with jurisdiction over its own personal and religious affairs.¹⁵ Unlike the modern concept of the nation, neither *taifa* nor *millet* implied any territorial claims. Pursuant with the new meaning imparted to the term “nation,” “*millet*” slowly came to incorporate the modern sense of minority to refer to nationally protected religious groups. This was a long drawn out process extending over almost a century during which the exact meaning of “minority” and “national identity” remained contested. As the Ottoman Empire lost large tracts of its Christian populated areas in the latter half of the nineteenth century, a new demographic reality emerged that was overwhelmingly Muslim but ethnically and linguistically diverse.¹⁶ According to Howard Eissenstat, the emphasis on culture and

¹⁴ Hannah Arendt, “Decline of Nation-State; End of Rights of Man,” in *The Origins of Totalitarianism* (Orlando: Harcourt Brace, 1979), 275.

¹⁵ For distinctions and overlaps between the terms *taifa* and *millet*, see Masters, *Christians and Jews*, 61–65.

¹⁶ Ariel Salzman, commenting on this period in Ottoman history, remarks: “The Hamidian regime ... was guided by a new demographic reality. Stripped of large Christian populations in

religion slowly gave way to metaphors of blood in the early days of the Turkish Republic, and eventually “race took a greater role within discussions of national identity.... A broad and colorful national mythology was developed and propagated, ‘proving’ the racial unity and continuity of Anatolia.”¹⁷ Religious affiliation, however, was not entirely inconsequential to this new nationalist project and non-Muslims often remained excluded from the unifying metaphor of race.¹⁸

The process by which separate nation-states were created in the Middle East was considerably fraught and varied. Generally speaking, with the fragmentation of the Ottoman Empire into multiple sovereign nations, religious identity came to be increasingly inflected by ethnic, racial, and linguistic forms of belonging. In Lebanon, for example, Maronite Christians came to define themselves against Arab-Muslim identity, whereas in Egypt Coptic Christians yielded to the Arabo-Islamic identity of the nation even as they came to adopt a distinct ethno-religious conception of what it meant to be Coptic.¹⁹ The precise nature of the relationship between ethnicity and religion continues to be debated even today, and as I will show at the end of this article it sits at the nexus of what it means to be a Coptic Orthodox Christian in contemporary Egypt.

In international law, during the inter-war period, despite the League of Nation’s attempts to define the term “minority” it proved to be elusive.²⁰ It was unclear whether “minority” was an objective designation based on certain ethnographic markers, or a subjective psychological process through which a group came to recognize these signs as significant to its political identity. The fact that not all minorities who exhibited signs of difference from the national majoritarian culture embraced this term posed difficulties for the League’s administrators as well as for early scholars of the phenomenon. Some claimed that in order for a group to be regarded as a national minority

Europe with the exception of Albania, Thrace, and Macedonia, the problem of religious pluralism had ceased and the question of ethnic minorities had begun.” “Citizens in Search of a State: The Limits of Political Participation in the Late Ottoman Empire,” in Michael Hanagan and Charles Tilly, eds., *Extending Citizenship, Reconfiguring States* (New York: Rowman and Littlefield Publishers), 50.

¹⁷ Howard Eissenstat, “Metaphors of Race and Discourse of Nation: Racial Theory and State Nationalism in the First Decades of the Turkish Republic,” in Paul Spickard, ed., *Race and Nation: Ethnic Systems in the Modern World* (New York: Routledge), 250–51.

¹⁸ *Ibid.*, 253.

¹⁹ For an excellent analysis of these different trends in modern Egypt, see Paul Sedra, “Class Cleavages and Ethnic Conflict: Coptic Christian Communities in Modern Egyptian Politics,” *Islam and Christian-Muslim Relations* 10, 2 (1999): 219–35. Also see Donald Reid, *Whose Pharaohs? Archeology, Museums, and National Identity from Napoleon to World War I* (Berkeley: University of California Press, 2003).

²⁰ See Preece’s discussion of this issue in *National Minorities*, especially ch. 2.

it had to exhibit historically verifiable cultural and linguistic traits,²¹ while others argued that such traits alone were not enough to qualify as a minority but required a subjective understanding that these traits distinguished the group from the majority culture.²² The vexed debate over who is or is not a minority and its proper markers is ongoing, and there is little consensus in international legal circles on how to define the term.²³

As is well known by now, the minority rights regulatory system put into place in the interwar period to police irredentist movements and violations of Minority Treaty terms collapsed with the onset of the Second World War. Not only was Hitler's invasion of Czechoslovakia opportunistically premised on the ostensible protection of the German minority living in Sudetenland, but the League of Nations failed in its mandate to curtail the rise of anti-Semitism and protect European minorities from genocide. At the war's end there was a sense that the emphasis on special protections for minorities had created greater tension, discord, and animosity rather than security, safety, and harmony within communities it sought to protect. An important factor in the discreditation of the language of minority rights was the emergence of the United States as the dominant power, whose national ideology ennobled the individual as the basis for all political values, eschewing any notion of community, collectivity, or group rights. In the discussion around the drafting of the Universal Declaration of Human Rights (UDHR), U.S. Under-Secretary of State Sumner Wells stated his country's distaste for minority rights explicitly: "[I]n the kind of world for which we fight, there must cease to exist any need for the use of that accursed term 'racial or religious minority'.... [I]s it conceivable that the peoples of the United Nations can consent to the reestablishment of any system where human beings will still be regarded as belonging to such 'minorities'?"²⁴ Ironically, even as the American architects of the UDHR

²¹ Laponce, an important voice in this debate, proclaimed for example, "A minority is a group of people who, because of a common racial, linguistic or national heritage which singles them out from the politically dominant cultural group, fear that they may either be prevented from integrating themselves in the national community of their choice or be obliged to do so at the expense of their identity" (quoted in Preece, *National Minorities*, 24).

²² In one of the earliest studies of the emergence of national minorities on the world stage, Inis Claude defined the problem in this way: "The fundamentally subjective nature of the concept of the nation prevents a precise statement of the scope of our problem.... We can only say that a national minority exists when a group of people within a state exhibits the conviction that it constitutes a nation, or a part of a nation, which is distinct from the national body to which the majority of the population of that state belongs, or when the majority element of the population of a state feels that it possesses a national character in which minority groups do not, and perhaps, cannot share. The *problem* of national minorities arises when such a situation exists within the conceptual framework of the national state." In *National Minorities: An International Problem* (Cambridge, Mass.: Harvard University Press, 1955), 3.

²³ See, for example, Javed Rehman, "Minority Rights in International Law: Raising the Conceptual Issues," *Australian Law Journal* 72, 8 (1998): 615–34.

²⁴ Quoted in Peter Danchin, "The Emergence and Structure of Religious Freedom in International Law Reconsidered," *Journal of Law and Religion* 23 (2008), 527.

championed individual equality as the basis of universal human rights, they refused to grant civil or political rights to African Americans who continued to suffer under the U.S. apartheid regime of racial inequality. When the National Association for the Advancement of Colored People (NAACP) tried to use the UDHR to make its case for racial equality in the United Nations, they were rebuffed by Eleanor Roosevelt herself who went on record to declare, “The minority question did not exist on the American continent.”²⁵

The discourse on the protection of religious and ethnic minorities fell out of favor for almost five decades until the dissolution of the Soviet Union in 1989 when it emerges once again with the creation of new republics and the displacement of people across state boundaries in a manner not seen since the end of the Second World War.²⁶ As before, these minority rights were guaranteed by the successor states of Yugoslavia in return for European recognition in terms strongly reminiscent of the treaties of Paris and Berlin. It is in this context that the U.N. General Assembly in 1992 passed the “Declaration on the Rights of Persons Belonging to National or Ethnic, Religious, and Linguistic Minorities,” and the legally binding Article 27 of International Covenant on Civil and Political Rights (ICCPR) that affirms the right of minorities to be protected against discrimination and to participate in local decision-making procedures that affect them provided it is compatible with national legislation.²⁷

Conclusion

This history of the interrelationship between religious liberty, minority rights, and geopolitics that I have traced here is often read as the cynical instrumentalization of otherwise noble principles in the service of realpolitik, or as the distribution of a moral good that Western Europeans discovered for themselves that they slowly introduced to less enlightened cultures sometimes through imperial force and sometimes through soft means such as international diplomacy. Seen in this way, the principle itself—its logic, its aim, and its substantive meaning—remains unsullied by the impious intentions of the empires and states that sought to promote or subvert it. Such an argument needs to be complicated for several reasons. First, it is important to understand that European efforts to subject weaker states to accept provisions for religious freedom for minorities (since the seventeenth century) cannot be understood as a simple

²⁵ Quoted in Danchin (ibid.: 528) from the record of the Seventy-Third Meeting, in 1948, of UN ESCOR, Committee on Human Rights.

²⁶ For an analysis of European institutions and legal instruments to monitor and regulate the situation of minorities since the dissolution of the Soviet Union, see Preece, “Minority Rights,” 88–91.

²⁷ Article 27 reads: “In those States in which ethnic, religious or linguistic minorities exist, persons belonging to such minorities shall not be denied the right, in community with the other members of their group, to enjoy their own culture, to profess and practice their own religion, or to use their own language.”

extension of a “culture of tolerance” to non-Western peoples and lands. If this were so, the European powers would have accepted similar provisions in regard to their own minorities, which they refused to do throughout history. For example, France, the author of many such inter-state treaties as a major European power, maintains to this day that it has no minorities living within its borders that fit the description of the term in international conventions on civil and political rights.²⁸ As I have shown, far from being a measure of a culture’s tolerance towards its others, religious freedom has been tied from its very inception to the exercise of sovereign power, regional and national security, and the inequality of geopolitical power relations.

Second, it would be wrong to assume that religious liberty consists of simply protecting certain groups or individuals from the exercise of state power (that is, drawing the separation between church and state firmly and resolutely). The people who are supposed to benefit most from the modern principle of religious liberty—namely, religious minorities—are not merely protected from abuses of state power but are also transformed by virtue of their subjection to the calculus of state and geopolitical power in unique and unpredictable ways. The shift, for example, from a group-based understanding of religious liberty to an individualist one in international legal discourse is more than a conceptual shift; it also affects the substantive meaning and practice of religious liberty as well as the kinds of subjects who can speak in its name. Furthermore, as shifting definitions of religious liberty prescribed by international legal discourse came to be adopted by nation-states, they often conflicted and overlapped with existing protocols and norms of minority-majority relations across lines of religious difference. In this hybrid context, claims to religious liberty made by members of a minority versus a majority community often mobilized different understandings of religious liberty, ethically, procedurally, and substantively. In summary, neither the concept nor the practice of religious liberty has been a stable or universal signifier—it has changed historically, crucially determined by the context of power relations within which it is inserted.

PART II

In this second part of the paper I want to flesh out various aspects of my arguments above by focusing on the case of the Coptic Orthodox Christian minority in Egypt, the largest Christian population in the Middle East. While in the first part I laid out in broad strokes how geopolitics has historically shaped the concepts of religious liberty and national minority in the Middle East, here I will show how this intertwining continues to inform Christian-Muslim relations in postcolonial Egypt. Despite a long history of religious discrimination

²⁸ Nathaniel Berman, “The International Law of Nationalism,” in David Wippman, ed., *International Law and Ethnic Conflict* (Ithaca: Cornell University Press, 1998), 40.

under Muslim rule, Coptic Christians proudly distinguish themselves from other Christian communities of the Middle East for repeatedly resisting European offers for protection, and for fully participating in the anti-colonial movement that overthrew British rule. In recent years, this project of national unity has come under increasing strain. While the reasons for this are complex, there is no doubt that the postcolonial period has failed to deliver on the promise of political and civil equality that the ideology of nationalism had held out. Against this backdrop, the right to religious liberty has emerged as a promising discourse for thwarting the sectarian strife that threatens to tear the Egyptian polity apart. Like before, geopolitical power has continued to shape the contours of this struggle in the post-colonial period.

Coptic Christianity and the Colonial Encounter

The Coptic Orthodox community constitutes between 6 and 12 percent of the Egyptian population.²⁹ While there are other Christian denominations in Egypt (including Catholics, Evangelicals, Episcopalians, and Anglicans), the Orthodox Copts constitute about 95 percent of Egyptian Christians. Under the Ottoman *millet* system, Coptic Christians were regarded as *ahl al-dhimmah*, a term whose juridical implications included the obligation of the state to protect the so-called “people of the book” (Jews and Christians) including the community’s life, property, and freedom of religion and worship. In exchange, the *dhimmis* were required to be loyal to the empire and pay a poll tax, the *jizya*, which complemented the Islamic tax paid by the Muslim subjects, called *zakat*.³⁰ There are two key aspects of this older arrangement that stand in contrast to how religious freedom is imagined today. One, unlike the modern conception of freedom of conscience based on the individual, the freedom accorded to the *dhimmis* to practice their religion was conceived in collective terms. They were, for instance, granted juridical autonomy over certain affairs of the community. Two, the freedom accorded to *dhimmi* communities assumed a world in which inequality was regarded as the norm: just as women were inferior to men, slaves to free men, non-Muslims were also regarded as the political and social unequals of Muslims. In other words, the collective freedom to practice one’s religion in the premodern Ottoman period did not presume the liberal individualist notion of equality that makes the modern conception of freedom of conscience possible. Instead, it was predicated upon a system of protections and obligations in which all legal

²⁹ Estimates of the Coptic population vary considerably. Results of the last, 1976 census were widely contested by Copts: while government figures put their population at 6 percent, the Coptic community in Egypt claimed 20 percent. For a discussion of this ongoing struggle, see J. D. Pennington, “The Copts in Modern Egypt,” *Middle Eastern Studies* 18, 2 (1982): 158–79.

³⁰ Maurits Berger, “Secularizing Interreligious Law in Egypt,” *Islamic Law and Society* 12, 3 (2005): 398–99.

subjects were first and foremost members of a religious community and non-Muslim communities stood in a hierarchical relation to the ruling Muslim order.

Over the course of the nineteenth century, under the reign of Muhammad Ali and his successors, many of the restrictions imposed on Copts were lifted, including the payment of the special *jizya* tax, the donning of sartorial markers to distinguish Christians from Muslims, exclusion from military service, and an easing of restrictions on the construction of churches.³¹ Not unlike his Ottoman counterparts, Muhammad Ali's reforms, too, were part of a proto-nationalist project aimed at recruiting Christians to the making of a modern polity; this did not mean however that earlier forms of discriminations against Christians disappeared.

Coptic Orthodox Christians seemed particularly suited for recruitment in the emergent nationalist project given their history of resisting offers of European patronage from the Ottoman period until well into the first half of the twentieth century. One major reason for Coptic resistance to repeated European overtures was the longstanding schism that had divided Oriental Orthodox Christianity, to which the Coptic Orthodox Church belongs, from the rest of Christendom. It was at the Council of Chalcedon (451 AD) that the "Oriental Churches" split from the rest of Christendom on the issue of the true nature of Christ.³² More than a doctrinal difference, this also affected the ecclesiastic structure of the church and the range of liturgical, ritual, and devotional practices that characterized the life of its members. Following this split, Coptic Orthodox Christians were first subject to brutal repression by the Byzantine emperors and later to aggressive proselytization campaigns undertaken by the Roman Catholic Church—all of which further entrenched the tensions and divisions between the Coptic Church and Western as well as Eastern Orthodox Christianity.³³

The Catholic Church tried to establish a formal relationship with the Coptic Church as early as 1439 (after the Council of Florence), followed by other periodic efforts, all of which failed in large part because of their general ignorance about Coptic history and the arrogant belief that Oriental Christianity was nothing but a primitive and depraved form of Christianity

³¹ Alastair Hamilton, *Copts and the West, 1439–1822: The European Discovery of the Egyptian Church* (New York: Oxford University Press, 2006), 276–77.

³² The Coptic Orthodox Church is a member of the family of Oriental Orthodox Churches (distinct from the Eastern Orthodox Churches). The Oriental Orthodox Churches include the Syriac Orthodox, Ethiopian Orthodox, Eritrean Orthodox, Malankara Orthodox Syrian Church (in India), and the Armenian Apostolic Church.

³³ For example, when the Byzantine emperor tried to impose his monophysite views on the Coptic Church, the Copts rebelled and suffered brutal persecution at the hands of the Byzantines. Against this backdrop, some historians have suggested that the Copts supported Arab armies against the Byzantines at Babylon in 641, while others think the Coptic reception of Arab invasions may have been more varied. On this point, see Stephen Davis, *The Early Coptic Papacy: The Egyptian Church and Its Leadership in Late Antiquity* (Cairo: American University of Cairo Press, 2004), 122–27.

whose salvation could only come from the West.³⁴ Throughout early modern history, Western Christendom continued to view the Copts as “backward” and “ignorant,” a view upheld by not only European missionaries but also colonial administrators and the early wave of American Protestant missionaries who followed. For example, Edward William Lane, the well known Orientalist and lexicographer, characterized Copts in this way in his landmark book *An Account of the Manners and Customs of Modern Egyptians*, first published in 1836: “They bear a bitter hatred to all other Christians; even exceeding that with which the Muslims regard the unbelievers in El-Islam.... They are, generally speaking of a sullen temper, extremely avaricious, and abominable dissemblers; cringing or domineering according to the circumstances.... [They] are generally ignorant, deceitful, faithless, and abandoned to the pursuit of worldly gain, and to indulgence in sensual pleasures....”³⁵

Almost seventy years later, Lord Cromer, who served as consul-general in Egypt during the British occupation (from 1883 until 1907), agreed with Lane’s characterization of Copts, differing only over the reason for their moral degeneracy: “It is true that the Coptic Christian has remained stagnant, but there is this notable difference between the stagnation of the Moslem and that of the Copt. The Moslem stands in everything on the ancient ways because he is a Moslem, because the customs, which are interwoven into religion, forbid him to change.... The Copt, on the other hand, has remained immutable, or nearly so, not because he is a Copt, but because he is an Oriental, and because his religion, which admits of progress, has been surrounded by associations antagonistic to progress.”³⁶

The antagonisms between Western Christendom and the Coptic Orthodox Church intensified further over the course of the nineteenth century with the incursion of Protestant missionaries initially sent from Europe (Anglican, Episcopalian, and Lutheran) and later from the United States (Presbyterian Evangelicals), none of whom had success with Muslim converts and concentrated their energies instead on the Copts.³⁷ As Heather Sharkey observes in her landmark study of American Presbyterian missions in Egypt, despite the rivalry between

³⁴ See Hamilton’s account of the history of the encounters between Coptic Christianity and Western Christendom, in particular with the Jesuits, Roman Catholics, and later the Anglicans and Presbyterians (*Copts and the West*, chapters 3–11).

³⁵ Edward Lane, *An Account of the Manners and Customs of Modern Egyptians* (Paris: Adamant Media Corporation, 2000), 551.

³⁶ Quoted in Hamilton, *Copts and the West*, 283.

³⁷ The rivalry between the Roman Catholic and the Eastern Orthodox and Oriental Orthodox churches continued far into the nineteenth century. It came to an end only after Rome was able to break up the Eastern Churches by bringing some of them under its leadership (in the form of the Uniate Churches), and to establish the Latin Patriarchate in Jerusalem (with its claim to the custody of the Holy Places following the Treaty of Berlin). See Joseph Maila, “The Arab Christians: From the Eastern Question to the Recent Political Situation of the Minorities,” in Andrea Pacini, ed., *Christian Communities in the Arab Middle East: The Challenge of the Future* (Oxford: Clarendon Press, 1998), 38–40.

Catholic and Protestant missionaries they shared their disdain for Coptic Orthodox Christians, aiming to initially convert them and later to transform what they perceived to be degenerate practices of the church.³⁸ Sharkey describes the period of the British occupation of Egypt (1882–1918) as the heyday of missionary activity during which American Presbyterians enjoyed the protection of British colonial authorities. During this period, the advantages accorded to Westerners under the Ottoman capitulations proved to be crucial for the missionaries in allowing them to “buy property, build schools, travel along the Nile, and distribute Christians tracts for free or at subsidized prices.”³⁹ It was not until 1937, with the signing of the Montreux Convention under mounting national opposition to the missionaries, that the legal and fiscal privileges they had enjoyed were finally revoked. It is important to stress here that the ability of the missionaries to operate in Egypt was enabled by and dependent upon the historical concessions Ottomans had granted to Western powers that came to be calibrated to a new rationality of colonial rule under the British. The Ottoman capitulations, in other words, were not simply a thing of the past but continued to have a transformative affect on Christians and Muslims in Egypt well into the early half of the twentieth century.

The discourse of religious liberty was crucial to the missionaries as an instrument to proselytize freely among Muslims and Copts without constraint from existing laws and prohibitions against religious conversion. They made ubiquitous use of international diplomacy and colonial and foreign offices of Anglo-American governments in this cause. Andrew Watson, a founding figure of the American Presbyterian mission in Egypt, internationally advocated for the adoption of religious liberty in forums as diverse as the League of Nations, the Paris Peace Conference, the U.S. State Department, and the British Foreign Office.⁴⁰ Watson’s son, Charles R. Watson (the first president of the American University in Cairo), came to doubt the efficacy of Christian proselytization. He continued to advocate, however, for the use of international diplomacy to promote religious liberty as a means for “Egyptian Muslims to embrace Christianity and profess it in public.”⁴¹ I want to underscore here that the principle of religious liberty, far from being a secular instrument of state neutrality, was for these advocates closely woven with their desire to win Christian converts. It is not surprising that by the early 1930s there was a backlash against the missionaries—its most effective expression was found in the tracts the Muslim Brotherhood published against the missions in which Christians *tout court* were often represented as agents of foreign powers.

³⁸ Heather Sharkey, *American Evangelicals in Egypt: Missionary Encounters in an Age of Empire* (Princeton: Princeton University Press, 2008), 30–31, 37.

³⁹ *Ibid.*, 4.

⁴⁰ *Ibid.*, 161.

⁴¹ *Ibid.*, 5. On Charles Watson’s changing position on Christian proselytization, see *ibid.*, 156–62.

The concepts and practices that the missionaries introduced in Egypt were instrumental not only in advancing colonial agendas, but they also transformed Coptic Orthodox Christianity from within, their mutual antagonism notwithstanding. The Coptic Orthodox Church adopted a variety of reforms as a result of the Protestant critique, including the emphasis on Arabic in worship, prayer, and the reading of the Bible as well as educational methods and programs and a service-oriented religiosity. The Protestant critique of the church hierarchy also led to the development of a “laymen’s movement that convened the first Coptic communal council, called *Majlis al-Milli* ... [that] represented an attempt among educated Coptic Orthodox laymen to assert their voice in the running of church affairs.”⁴² According to Paul Sedra, the ideas Protestant missionaries introduced were crucial to the development of a Coptic elite that was critical of the clerical hierarchy and what were deemed to be its retrograde practices.⁴³ As I will discuss later, when Gamal Abdel Nasser, the first president of the postcolonial republic, put the control of *Majlis al-Milli* in the hands of the church, it was a shot across the bow at the secular Coptic elite who had fought to develop a critical political voice against not only clerical excesses but also Muslim-dominated national discourse. While Nasser understood himself to be acting in the name of national unity, his act is nonetheless located within a long genealogy of transformations that European Christianity had helped unleash in Egypt.

Minority: What’s in a Term?

With the spread of nationalist ideas and the promise of civil and political equality under the aegis of the modern nation-state, Muslim-Christian relations in Egypt reached a new crossroad. The early part of the twentieth century is a high moment in the history of modern Egypt, when Copts and Muslims united against British colonial rule. While the year 1919 is known in the history of international law for the institutionalization of the term “national minority,” it is best known in Egypt for the Coptic refusal to accept this term as a form of self-identification. Egyptian national historiography proudly recounts the Revolution of 1919 when Copts and Muslims mounted a heroic opposition against the British for having expelled the Egyptian anti-colonial leader Saad Zaghloul (and other members of the Wafd Party⁴⁴), demanding

⁴² Ibid., 45.

⁴³ Paul Sedra, “John Lieder and His Mission in Egypt: The Evangelical Ethos at Work among Nineteenth-Century Copts,” *Journal of Religious History* 28, 3 (2004): 219–39. The development of the “Sunday School Movement” from the 1920s–1940s was a consolidation of this trend of which the current pope, Shenouda III, was a leader. On this, see S. S. Hasan, *Christians versus Muslims in Modern Egypt* (New York: Oxford University Press, 2003), chapters 4–6.

⁴⁴ The Wafd Party was named after the term *wafd*—meaning “delegation”—which was a reference to the group of Egyptians who wanted to attend the 1919 Paris Peace Conference to demand Egyptian independence. The British rulers never allowed the group to leave Egypt but the name

an end to colonial rule. The British eventually conceded to grant Egypt independence in 1922, on the condition that Britain would retain the privilege to act on behalf of the Christian minority.⁴⁵ Joining the Muslims, the Copts rejected the British offer as an unacceptable intervention in the internal affairs of Egypt, and further demanded annulment of the British prerogative to protect Egypt's resident foreign nationals (Greeks, Armenians, and Italians).⁴⁶

Despite some dissension from within, representatives of the Coptic community refused to accept the assignation "minority" on the ground that they were no different than their fellow Egyptians. Subsequently, when Egypt's first constitution was drafted in 1923, Coptic members of the Wafd Party opposed the idea of proportionate minority representation, fearing that it would create divisions based on religion in the body politic similar to those that divided the Muslims from Hindus in India. Instead, they argued, the constitution had to guarantee all Egyptian citizens the right to political and civil equality. Perhaps even more striking was that none of the Coptic members of the Constitutional Committee objected to the provision in the constitution that Islam was to be the religion of the state. Famously, Makram Ebeid, a prominent Coptic member of the Wafd Party is known to have stated that he was a Muslim by country and a Christian by religion.⁴⁷ Others argued for a distinct Egyptian identity rooted in the Pharonic past that provided a historical and cultural bridge across religious differences between Muslims and Christians.

Many elements of this historical narrative are cherished and cited by nationalist Coptic intellectuals today as is evident in the following remarks made by a prominent scholar and activist, Samer Soliman, in an interview with me⁴⁸:

You know the Copts have a long and prominent history in the making of modern Egypt. When people say that we had a revolution in 1952, I say no, that was the result of the revolution in 1919. Copts were leading figures in this revolution. It is not like the Maronites in Lebanon. They colluded with French colonialism. Copts did not collude with

stuck. This is another anecdotal example of the radically distinct kinds of political aspirations that the year 1919 represented for the Europeans and Egyptians.

⁴⁵ Despite the formal independence, the British retained control over Egypt's political, fiscal, and administrative affairs, and the Suez Canal that they brought under their military protection. It was only after the Free Officer's coup in 1952 that British privileges began to be slowly eroded, and the last British troops left Egypt in 1956.

⁴⁶ Saad Eddin Ibrahim, Marilyn Tadros, Mohammed Anwar El-Fiki, and Soliman Shafik Soliman, *The Copts of Egypt* (Cairo: Ibn Khaldun Center for Development Studies; London: Minority Rights Group, 1996), 12. Also see Hasan, *Christians versus Muslims*, 38.

⁴⁷ In the 1924 and 1928 elections the Copts won more seats than their share of the population and were assigned important governmental portfolios. This seemed to vindicate the Coptic refusal to accept the principal of minority proportionate representation at the time. See Hassan, *Christians versus Muslims*, 38–40.

⁴⁸ Personal interview, 20 Apr. 2008.

British colonialism because we have always thought of ourselves as Egyptians first. Maronites think of themselves as Europeans, not Lebanese. In fact, when the Russian Czar tried to extend his protection to the Copts as a faction of the Orthodox Church, like the Catholics were extending to the Maronites, the Copts refused! This has to do with the fact that our history as a nation goes much farther back. The principle of unity as a nation is our only hope: we can't let go of this principle, it is only within the context of the nation-state that the point of unity becomes possible across differences.

Other Copts contest this vision of national unity today, which, they argue, was already showing signs of strains by the time of the establishment of the Egyptian Republic in 1952. Unlike the Revolution of 1919 that had wide participation from Copts, they point out that the group of military officers who overthrew the British-supported monarchy had no Copts among them. Under the charismatic leadership of the first president, Gamal Abdel Nasser, the new republic did not deliver on the democratic promise of the earlier revolution, but instead created an authoritarian regime that eroded civil and political liberties for all Egyptians, including Copts. This was not because Nasser was religiously biased against the Copts but was the result of a series of complex socio-economic policies and developments that transformed post-colonial Egyptian identity and by extension the public and political life of Coptic community. As Mariz Tadros has argued, on the one hand Nasser's agrarian and economic reforms weakened the social basis of Coptic aristocracy that had been at the forefront of the national unity movement; on the other, Nasser's authoritarian and despotic tendencies led him to break up the autonomy and power of secular lay Copts.⁴⁹ As an example of the latter, Nasser made the composition of the largely Coptic laymen's Communal Council (*Majlis al-Milli*) subject to the Pope's approval and shifted the control of religious endowments to the church. Tadros shows that the transformations Nasser wrought in Egypt's socio-economic, religious, and political spheres had the long-term consequence of enshrining the church as the sole representative of Copts in Egypt such that "religious affiliation became the Copts' main marker, not their citizenship."⁵⁰

After Nasser's death in 1970, many of the trends he institutionalized were reinforced under the two subsequent regimes of Sadat and Mubarak, with the result that the diacritics of religious difference have become indelibly lodged within the problematic of citizenship. If Nasser's policies are held responsible for the confessionalization of Coptic identity, then Anwar Sadat's regime (1970–1981) is regarded as having opened the door for the polarization of Muslim identity along confessional lines. It is commonly acknowledged that in order to counter the Nasserite legacy and leftist opposition, Sadat facilitated the rise of Islamist politics that soon spun out of his control—not only did the

⁴⁹ Mariz Tadros, "Vicissitudes in the Entente between the Coptic Orthodox Church and the State in Egypt (1952–2007)," *International Journal of Middle East Studies* 41 (2009): 269–87.

⁵⁰ *Ibid.*: 271.

Islamists become the most vociferous critics of his regime but Sadat was killed by a group of Islamist soldiers from his own army. Sadat is also known for his dramatic standoff with the Coptic Pope Shenouda III, whom he summarily deposed as the head of the Coptic Orthodox Church in 1981, and sent into rural exile where he remained until his return in 1983 under President Hosni Mubarak. In contrast to Sadat, the Mubarak regime (1981–2011) created a church and state entente that has essentially allowed the Coptic Orthodox Church (under Pope Shenouda III) to further consolidate its control over the social and civic life of Copts, while pledging obsequious allegiance to the president and his corrupt National Democratic Party. In an article published in 1999, Sedra described this arrangement aptly: “Shenouda is dependent upon Mubarak, the church hierarchy is dependent upon Shenouda, and the Coptic community is dependent upon the hierarchy for social services and political leadership.”⁵¹ It is no surprise that when anti-Mubarak demonstrations broke out on 25 January 2011, Pope Shenouda III urged his followers to desist from participation—a call that was ignored by many Copts who participated in Mubarak’s overthrow.

One of the most disturbing consequences of the polarization of religious identity in Egypt is the gradual increase in sectarian violence: while this kind of violence was not unknown to Egypt it has become far more prevalent in the last ten years.⁵² The leading Egyptian human rights organization that monitors issues of religious freedom warned in a report released in 2010 that there had been an unprecedented escalation in sectarian violence from 2008 to 2010: over fifty-three incidents were documented, in seventeen out of twenty-nine governorates.⁵³ That the perpetrators of violence have not been prosecuted and the victims are denied adequate state protection further reinforces the impression that state agencies are deeply implicated.⁵⁴ Following the overthrow of Mubarak on 11 February 2011, it is unclear whether the new regime will be able to transform the sectarian ethos of Egyptian society and dismantle the thick network of laws and practices that have contributed to the tensions between Muslims and Copts. Even though the protests that

⁵¹ Sedra, “Class Cleavages,” 228.

⁵² According to one of the most comprehensive studies undertaken on the social organization of religious life in Egypt, the sectarian attacks on Copts in the town of Khanaka in 1971 and later in Alexandria in 1981 marked a significant turn in Christian-Muslim relations; see *al-Hala al-Diniya fi Masr* (Cairo: Center for Political and Strategic Studies, 1995), 216. Later in 2000, after the perpetrators of the famous al-Kosheh incident (in which twenty Copts were killed) went unprosecuted, many Copts came to realize that the Egyptian state was unwilling to protect its Christian citizens.

⁵³ Egyptian Initiative for Personal Rights (EIPR), *Two Years of Sectarian Violence: What Happened? Where Do We Begin?*, http://eipr.org/sites/default/files/reports/pdf/Sectarian_Violence_inTwoYears_EN.pdf (accessed 15 Apr. 2010).

⁵⁴ A large number of sectarian incidents are provoked by restrictive laws on the building of churches. These supposedly date back to Hatt-i Hümayun (passed in 1856) but are in fact a product of 1934 state emendations. See Sharkey, *American Evangelicals*, 59.

helped overthrow Mubarak were non-sectarian in character, Coptic churches and property have been attacked in post-Mubarak Egypt and the same issues that led to communal strife before are at play today.⁵⁵

Political Equality versus National Sovereignty?

It is within this double-edged context—of the confessionalization of Egyptian civic-public life and the increase in inter-religious violence—that many Copts over the last three decades have come to question their community's earlier rejection of the term "minority" as a form of self-identity. For these Coptic thinkers and activists, the only way to secure government recognition of and response to Coptic grievances is to adopt the international language of minority rights, particularly their right to religious liberty.⁵⁶

This position is exemplified by Magdi Khalil, a prolific writer and well known Coptic public figure. In a series of articles and blog posts he makes an argument for why Coptic Christians should qualify as a minority in accord with international human rights charters and conventions.⁵⁷ For the Copts to claim the term "minority," writes Khalil, is not only to recognize the objective grounds of their identity but to also lay bare a history of religious discrimination that can only be redressed through recourse to international laws that are ultimately supra-sovereign over the Egyptian state. In making this argument, Khalil rehearses a foundational tension internal to the minority rights debate in the early twentieth century that I discussed earlier: objective ethnographic markers such as religion or language are not sufficient to create a self-conscious minority identity. What is equally required is a subjective embrace of these attributes that ultimately enables the minority to make civic and political claims on the national and international community. Khalil is one of the few Copts who openly call for direct foreign or international intervention into Egyptian affairs on behalf of the Coptic minority. Such an intervention cannot be seen as a colonial imposition, he insists, because of its abidance by international laws and not the interests of a single colonial power.

In contrast to Khalil, there are other Coptic thinkers who continue to uphold the vision of national unity articulated in the 1919 Revolution. Among them is Samir Murqus, a prominent Coptic figure in Egyptian intellectual and public life and the founder of the Coptic Center for Social

⁵⁵ For a discussion of some of these factors, see my "Sectarian Conflict and Family Law in Contemporary Egypt," *American Ethnologist* 39, 1 (2012): 49–57.

⁵⁶ As to how far the discourse on minorities has come since the first conference on minority rights, organized by the activist Saad Eddin Ibrahim in 1994, was widely attacked for infidelity to the nation, see Peter Makari, *Conflict and Cooperation: Christian-Muslim Relations in Contemporary Egypt* (Syracuse: Syracuse University Press, 2007), 162–69.

⁵⁷ Magdi Khalil, "al-dimuqratiyya wa huquq al-'aqliyat...al-aqbat namuzaj," http://www.middleeasttransparent.com/old/texts/magdi_khalil/magdi_khalil_democracy.htm (accessed 19 Apr. 2010).

Studies.⁵⁸ In a series of books and articles, Murqus has challenged the link some Coptic and Muslim activists draw between the realization of political equality for Copts and their designation as a “minority.” Specifically addressing activists who have sought to introduce and normalize the discourse on minority rights in Egypt, he argues:

[They believe] that they are bringing Egyptian consciousness to a new level that is not encompassed by the framework of national community. [In this they want to] present Muslims and Copts as a majority versus a minority, rather than citizens of the Egyptian nation. Despite the insistence by some that there is no contradiction between the concept of citizenship and minority, indeed there is a fundamental contradiction between the two: the concept of minority emanates from a divisive and fractious principle whereas citizenship emanates from the principle of equality in rights and responsibilities and participation in the creation and adoption of decisions at all levels, for all citizens, irrespective of differences in occupation, class, language, ethnicity, or religion. [Whereas] ... the thought of majority and minority does not help achieve equality.⁵⁹

These two positions, exemplified by Khalil and Murqus, define the parameters of public debate about minority rights in Egypt today, and much of the discussion unfolds in accord with the discursive assumptions, terms, and limits internal to this debate. Both positions exemplify structural tensions within the conceptual and institutional edifice of minority rights. As I have explained, “minority” is more than a descriptive term because it is indexical of the problematic space that groups distinct from the identity of “the nation” came to occupy in the post-World War I political order. It is helpful to recall Hannah Arendt’s words here “[Once] the whole question of human rights ... was quickly and inextricably blended with the question of national emancipation; [then] only the emancipated sovereignty of the people, of one’s own people, seemed to be able to insure them.”⁶⁰ Without citizenship or membership in a national community human rights were meaningless, Arendt argued, the most tragic proof of which was the mass of stateless people, the “modern pariahs” created in the aftermath of World War I, who “did not have a right to have rights.”⁶¹ No international charter or institution, like the Minority Treaties or the League of Nations, could guarantee this right; it required membership in the political community of the nation-state.

The realization that minority rights depend on national rights is echoed in the following statement by Samer Soliman, the Coptic intellectual-activist I quoted earlier: “The principle of national unity has been our only hope.... [F]or the Copts, it is only when the concept of the nation-state is born that

⁵⁸ Murqus is often compared to the early Coptic nationalists such as William Soliman Kelada, Milad Hanna, and Yunan Labib Rizk.

⁵⁹ Samir Murqus, *Al-himaya wa al-a'qab: al-gharb wa al-mas'ala al-diniya fi al-sharq al-awsat; min al-qanun al-ri'aya al-madhabiya lil qanun al-hurriya al-diniya* (Cairo: Merit, 2000), 78. All translations from Arabic are mine.

⁶⁰ Arendt, “Decline,” 291.

⁶¹ *Ibid.*, 297.

we can begin to dream of ourselves as equals. Otherwise before we could not even dream of equality, we were simply *dhimmis*, who could be protected at the whim of a ruler, but ultimately unequal to a Muslim, living in small cloistered communities. So for the Copts, it is the birth of the nation with its principle of citizen equality that provides the hope of a different future in Egypt.” Soliman’s argument gives voice to the foundational premise and promise of nationalism in that Coptic equality comes to be tethered to the project of national emancipation. Murqus echoes this realization as well when he says, “Citizenship emanates from the principle of equality in rights and responsibilities and participation in the [making of] decisions at all levels, for all citizens, irrespective of differences in occupation, class, language, ethnicity, or religion.”

If the tension between religious difference and national belonging is one structural aspect of the minority rights debate, then a second aspect that I have tracked in this essay is the way in which the inequality between Third and First world sovereignty continues to inflect the discourse on minority rights in societies like Egypt. Given this historical imbrication, arguments such as Magdi Khalil’s that call on Western powers and international institutions to intervene on behalf of Copts cannot be understood as colonial in any simple sense insofar as these arguments presuppose and reflect the historical reality of minority rights in the Middle East. Khalil implicitly recognizes this history and the institutional conditions necessary for securing minority rights in Egypt, particularly for Christians. For Copts such as Murqus, the history of geopolitical inequality between the Middle East and Western powers is equally relevant. But unlike Khalil, he concludes that because the principle of minority rights was the vehicle for the subjugation of national sovereignty to foreign rule it cannot now serve as the instrument for Coptic salvation. Any embrace of this principle necessarily entails the inscription of Copts in this longstanding colonialist project. Regardless whether one is partial to Khalil or Murqus, both positions are grounded in the impossible paradox that haunts the discourse of minority rights in the Middle East.

Christian Evangelicals and Contemporary Geopolitics

While minority rights discourse could have taken a number of different forms in Egypt, it is religious freedom that has emerged as its primary site of articulation and struggle. In contrast to the 1980s and 1990s, current Egyptian public debate is saturated with terms such as *hurriyat al-‘aqida* (religious freedom), *hurriyat al-mu‘taqid* (freedom of belief/faith), *izdira’ al-adyan* (defamation of religion), *huquq al-‘aqaliya* (minority rights), and *fitna taifiya* (sectarian riot/strife). Secular civil society organizations that used to avoid taking on religious issues now regularly mount legal challenges in defense of religious freedom using the language enshrined in the Egyptian constitution and international human rights conventions such as Article 18 of the UDHR and

Article 27 of the International Covenant on Civil and Political Rights. When asked, informed Egyptians cite a number of interrelated developments that have contributed to the popularization of the concept of religious liberty, key among them increased violence against Copts, the passage of International Religious Freedom Act (IRFA) by the U.S. Government in 1998, and the activism of the Coptic diaspora.

The IRFA was passed by the U.S. Congress in 1998, under President Clinton, and mandates the U.S. State Department to monitor incidents of religious persecution worldwide. It authorizes the president to censure through diplomatic and/or economic means states that are found to be guilty. The Act also established the Office for Religious Freedom within the State Department to which an ambassador at large is appointed, and a special IRFA adviser now serves on the National Security Council. While Section 402 of the IRFA requires the president to subject states identified as “severe violators” of religious freedom to a series of punitive sanctions, it also provides for a presidential waiver that allows for exceptions when the violators are valuable trading partners or geopolitical allies of the U.S. Government. The IRFA commands a particular force in a country like Egypt that is disproportionately dependent on U.S. economic and military aid (after Israel, Egypt is the second largest recipient of U.S. aid) in exchange for which it has served as a proxy in the region for U.S. strategic interests. Critics of Egyptian policy toward Copts have seized upon the IRFA as an instrument to force the government to comply with IRFA recommendations for addressing Coptic grievances. In 2008, for example, House Representative Frank Wolf, one of the initial drafters of the IRFA, introduced Bill 1303 in the House of Representatives that threatened to make U.S. aid to Egypt subject to its compliance with Coptic demands for religious liberty.⁶² Many Coptic and Muslim nationalists regard such attempts as a violation of Egyptian sovereignty and reject the IRFA as an imperial intervention.

A number of scholars have noted that the congressional passage of the IRFA was the result of over two decades of evangelical mobilization in the United States to forge an ecumenical vision of Christianity as a universal community that needed to be saved from non-Christian persecution.⁶³ Joshua Green, for example, points out that one of the central aims of this movement has been to “remoralize” [American] foreign policy to address religious oppression abroad,” to harness the resources of the State Department to bring about this change.⁶⁴ While these “new evangelicals” (a term that often

⁶² On the text of the Bill, see <http://www.govtrack.us/congress/billtext.xpd?bill=hr110-1303> (accessed 28 Apr. 2010).

⁶³ See Melani McAlister, “Politics of Persecution,” *Middle East Research and Information Project* 249, 39 (2008): 18–27; and Elizabeth Castelli, “Praying for the Persecuted Church: US Christian Activism in the Global Arena,” *Journal of Human Rights* 4 (2005): 321–51.

⁶⁴ Joshua Green, “God’s Foreign Policy,” *Washington Monthly*, Nov. 2001, <http://www.washingtonmonthly.com/features/2001/0111.green.html> (accessed 28 Apr. 2010).

includes Episcopalian, Presbyterian, and Southern Baptist supporters) share certain similarities with their colonial counterparts (the mobilization of ecumenical global networks and international diplomacy to achieve their ends), they are distinct in their use of human rights language and networks to save what they call the “persecuted Church” in various parts of the world, particularly in Muslim countries.⁶⁵ This usage has its roots in the Cold War era when American evangelicals marshaled the discourse of religious rights in their fight against the ideology of “godless communism” in Eastern Europe and the former Soviet Union. The discourse on religious freedom at the peak of the Cold War had a distinct anti-secularist cast as American activists embarked on one of the largest mobilizations of the century against “totalitarian secularism” in defense of minority faiths in the Soviet Union and later Catholics and Protestants in the Soviet satellite states.⁶⁶ With the collapse of the Soviet Union, and later the events of 9–11, this old guard found a new enemy in Islam, and they have come to regard Muslim countries as their prime site of intervention and activism.

Consider, for example, the conservative think tank, the Hudson Institute, which was once active on behalf of religious freedom in former Soviet republics and has continued to play a central role in the shaping and implementation of the IRFA. It is now home to many of the IRFA protagonists associated with the American evangelical mobilization (such as Paul Marshall, Michael Horowitz, and Nina Shea).⁶⁷ The Institute was initially founded to address Cold War issues (1961) but now identifies “radical Islam” as the greatest threat to the “security and freedom” of the United States, against which the right to religious freedom is proposed as a solution—particularly the right of Christian minorities living in Muslim lands. Their website reads:

Since 9/11, the link between our own security and freedom, between our national interests and our ideals, has never been clearer. Winning the War on Terror turns on the battles of ideas and at its heart is the principle of religious freedom.... During the Cold War, the Center focused on helping religious believers persecuted under Communism. Today, while the Hudson Institute continues to press for religious freedom in communist and socialist states such as China and North Korea, it is increasingly engaged in ensuring that American policymakers defend the principle of religious freedom and believers who are persecuted purely for their religious beliefs in the Muslim world.⁶⁸

⁶⁵ Castelli, “Praying for the Persecuted Church.”

⁶⁶ Sam Moyn, “From Antisecularism to Secularism: Reflections on the History of Religious Freedom,” MS presented at the European Inter-University Center for Human Rights, Venice, July 2011, 21.

⁶⁷ On the role these figures have played in the passage of the IRFA and their evangelical mobilization, see McAlister, “Politics of Persecution”; and Castelli, “Praying for the Persecuted Church.” Also see Jeremy Gunn, “Religion after 9-11: When Our Allies Persecute,” *Religion in the News* 4, 3 (Fall 2001), <http://www.trincoll.edu/depts/csrp/RINVol4No3/religious%20persecution.htm> (accessed 28 Apr. 2010).

⁶⁸ See http://crf.hudson.org/index.cfm?fuseaction=about_detail (accessed 28 Apr. 2010).

Freedom House is an example of a liberal-styled think-tank formed at the time of the Cold War that is now committed to promoting the IRFA worldwide. The evangelical project to promote the religious liberty of Christian minorities living in Muslim countries, with the U.S. State Department's force behind it, has been a boon for expatriate Coptic Americans who see this as an opportunity to use their political muscle as U.S. citizens to urge their senators and congressmen to force the Egyptian government to change its discriminatory policies, given its disproportionate reliance on U.S. aid. Starting in the 1980s, the Coptic diaspora, fed up with the Coptic Orthodox Church's collusion with the Egyptian state, increasingly turned to openly confrontational politics against the Mubarak regime.⁶⁹ Many of them now work closely with the American evangelical movement.

A good example is Michael Meunir, founder of the non-profit U.S. Copts Association (established in 1996), who regularly collaborates with the Hudson Institute in presenting testimonies about Coptic persecution to the Congress and serves as a bridge between the State Department, IRFA evangelicals, and Egyptian NGOs.⁷⁰ Meunir proudly acknowledges his friendship with Republican Congressman Frank Wolf, the primary author of the Wolf-Specter Bill that became the initial basis of the IRFA, and came under heavy criticism for its narrow focus on "communists and Islamic governments that persecute Christians."⁷¹ Meunir's politics, like those of his fellow diasporic activists, are complicated. While they connect the plight of Coptic Christians with the lack of democracy, corruption, and authoritarianism of the Mubarak regime, and make common cause with other non-Muslim religious minorities and victims of the state's brutal policies, they also participate in the post-9/11 Euro-American demonization of all Islamist political activists regardless of their political leanings.⁷² In a world where U.S. national security interests seem to devolve upon protecting fellow Christians from Muslim persecution, Copts like Meunir legitimate a rather simple argument popular within U.S. foreign policy circles these days: Islamists are intolerant, opposed to the values of

⁶⁹ One of the first associations to be formed was the American Coptic Association in 1972 by Shawky Karas. There are now over twenty organizations that are active on behalf of Egyptian Copts, most of them based in the United States, Canada, Britain, France, Switzerland, and Australia. See Muhammed Ziyani, *Aqbat al-mahgar: suda' ji damagh Masr* (Cairo: Dar al-Kutub al-Masriya, 2008).

⁷⁰ See, for example, <http://www.copts.com/english/?p=61> (accessed 28 Apr. 2010), for an account of a major conference hosted by the U.S. Copts Association attended by Nina Shea and Frank Wolf (architects of the IRFA), in Washington, D.C., in November 2005.

⁷¹ Jeremy Gunn, "Religion after 9-11." The Wolf-Specter bill was later combined with the Nickles-Lieberman bill to give the IRFA a somewhat broader scope in its concern for religious minorities.

⁷² See Meunir's testimony to the Congressional Human Rights Caucus, headed by Representative Frank Wolf (May 2007), which was followed by the U.S. Copts Association holding an international conference on Coptic rights: <http://www.copts.com/english/?p=53> (accessed 28 Apr. 2010).

democracy and freedom, and enemies of Christians; the United States as a Christian and democratic nation must ally itself with the persecuted Coptic Christians so as to fight fanatical Muslims.

Not all Coptic activists and thinkers in Egypt view the IRFA as a path to their salvation from communal strife. The aforementioned Samir Murqus has made a number of trenchant arguments against the IRFA and its indebtedness to the evangelical movement in the United States. The title of one of his major publications states his thesis bluntly: "Protection and Punishment: The West and the Religious Question in the Middle East; From the Law of Patronage to the Law of Religious Freedom; A Special Study of the Copts."⁷³ Murqus places the IRFA in the long history of Western European interventions on behalf of Christians, including the Ottoman capitulations that gave "Westerners the right of patronage over their coreligionists, namely Christians."⁷⁴ He recognizes the difference in the motivation behind the IRFA and those behind older projects of Christian proselytization, but locates the continuity in the effects these projects have produced on the lives of Egyptians, Muslims and Copts alike.

The relations between the Coptic diaspora and the Coptic Orthodox Church are also complicated: the openly confrontational discourse of the former puts the Coptic Church on the defensive by challenging its obsequious fidelity to the governing regime. This tension notwithstanding, many clerics have come to recognize the legitimacy of the demands put forward by the Coptic diaspora and the identitarian politics they have popularized. Just how much the church discourse is being transformed from inside was evident in a lecture delivered by a prominent Coptic bishop at the Hudson Institute in 2008 and hosted by Nina Shea (a leader in the mobilization for the passage of IRFA), to showcase Coptic plight to U.S. foreign policy circles. In this talk, addressed to the American diplomatic and general public in Washington, D.C., Bishop Thomas cast Coptic religious difference in ethnic and linguistic terms. Claiming Copts as the indigenous inhabitants of Egypt and Arab-Muslims as foreign invaders, he portrayed the conversion of Copts to Islam as more than a religious conversion: "The Copts have been always focused on Egypt; it's our identity, it's our nation, it's our land, it's our language, it's our culture. But when some of the Egyptians converted to Islam, their focus changed away from looking to their [own language and culture].... Arabia became [their] main focus.... Are they really Copts or have they really become Arabs?.... If you come to a Coptic person and tell him that he's an Arab, that's offensive. We are not Arabs, we are Egyptian."⁷⁵ In this logic, then, conversion from Christianity to Islam is not simply a change

⁷³ Samir Murqus, *Al-himaya wa al-a'qab: al-gharb wa al-mas'ala al-diniya fi al-sharq al-awsat; min al-qanun al-ri'aya, al-madhabiya lil qanun al-hurriya al-diniya* (Cairo: Merit, 2000). All translations from Arabic are mine.

⁷⁴ Ibid., 76.

⁷⁵ See "Event Transcript: Coptic Bishop Thomas on Egypt's Christians: The Experience of the Middle East's Largest Christian Community during a Time of Rising Islamization," 18 July 2008,

of religion but the substitution of one ethnic identity (Coptic) with another (Arab). To give up Coptic faith is to also lose one's indigenous identity. If Egypt is Coptic in its ethnic essence, this argument goes, then Arabs and Muslims are not only foreign to Egypt but are also betraying the indigenous identity of the nation. Given this chain of equivalences, Bishop Thomas concludes: "When you look at a Copt [today], you don't only see a Christian, you see an Egyptian who is trying to keep his identity versus another imported identity that is working on him."

When Bishop Thomas' address reached Egypt, it created a raging debate in the media and the press. While most Egyptian activists on behalf of Coptic rights have become accustomed to the minoritarian claim, they found the bishop's characterization of Coptic Christianity as an indigenous ethnic identity most disturbing and difficult to sustain. While the bishop's argument sounded foreign to many Egyptian ears, it was quite legible to his American audiences, well schooled in minoritarian claims of ethnic and indigenous identity. It is easy to see how the performative demand of the political arena in which the bishop made his case (the Hudson Institute in Washington, D.C.) required him to amplify the differences between Copts and Muslims—it seemed necessary in order to capture the attention of a powerful ally that can help finally change the Coptic situation.

The IRFA's international reach is subjecting Coptic identity to a new set of demands, one of the most significant being the demand to translate across the register of religious difference into a language of ethnic, indigenous, and linguistic identity, all far more legible markers of minority difference in modern discourse on minority rights than is religion. Ironically, it is the coalition of American churches, with the force of the IRFA behind them, who are inciting this translation of religion into non-religious forms of identity. While the performative effect of this speech act remains to be seen, one thing is clear: the demand for the recognition of Coptic religious difference is being subjected to a set of transformative forces that are far beyond the control of the subjects who speak in its name.

Conclusion

Let me close by returning to the question with which I started this paper: What imaginaries of freedom and unfreedom are made possible by the recent resurgence of the discourse on religious freedom? What consequences does this have for religious minority and majority populations of a polity? By way of an answer, let me point out that because the right to religious liberty in the Middle East has long served as a critical means of protecting religious minorities, it is historically linked to the subjugation of national sovereignty to

<http://www.hudson.org/files/documents/July18%20Bishop%20Thomas%20Transcript%20-%20Final.pdf> (accessed 6 May 2010).

foreign and supra-national powers. This structural linkage in the postcolonial context introduces two basic productive instabilities in the field of national politics *and* in the self-understanding of a religious minority.

First, for a religious minority to call for international protection—in the context of postcolonial societies—is to also draw attention to the uniqueness of the group as distinct from the majoritarian identity of the nation. While this operation articulates and enhances fractures within the identity of the nation, it also sets up an unstable synergy between the security afforded by the extension of foreign/international protection to the minority and the insecurity this protection engenders with respect to the minority's relationship to the nation. In other words, while certain postcolonial religious minorities can claim international law to protect themselves from discrimination (and not all religious minorities can), this protection also leaves them more vulnerable. The conditions of their empowerment are also those of their vulnerability.

Second, the structural dependence of a postcolonial minority's struggle for survival on supra-national forms of support requires a certain amplification of their difference to draw attention to their plight. This is more than simply a feature of the victim's hyperbole—it is necessary in order to make one's discrimination legible in the terms of the international discourse of minority rights and religious freedom. We have seen that one transformation rendered in the modern meaning of minority is the shift from religious identity to an emphasis on linguistic, ethnic, cultural, and racial identities. This change in part owes to the ascendance of the nation-state as the primary political form, and the kinds of differences that are significant to its ideological and organizational structure. As Bishop Thomas' speech to the Hudson Institute made clear, in order for the Coptic plight to register in the theater of minority rights, it must be made commensurate with other kinds of injury that are at the core of minority rights discourse in Euro-America. As a result, the bishop played to the proclivities of his American audience and the parameters of distinction internal to the discourse of the Hudson Institute and international human rights discourse on minorities.

But in making religious difference commensurate with ethnic and linguistic difference, the bishop's discourse introduces two fundamental instabilities: (a) the suturing of religious difference to other kinds of differences weakens the very identity on the basis of which Copts claim discrimination; and (b) this amplification of differences sets Copts further apart from the Egyptian nation and its social fabric. Such a polemical accentuation of Coptic difference from Egypt's Arab and Muslim history may well gain foreign protection, but it also makes more difficult the project of finding ways of living together. The paradox that haunts the postcolonial religious minority in this moment is precisely that the terms that render religious discrimination legible are also the terms that suture religious identity to other forms of difference, and in doing so, make the minority identity unstable as much as it weakens the possibility of forging a collective life together.